IN THE SUPREME COURT OF THE STATE OF OREGON

THE STATE OF OREGON, Plaintiff-Adverse Party, vs. COLUMBUS DINKEY GENE HAYLES Defendant-Relator	Lane County Circuit Court No. 24CR59872 EMERGENCY PETITION FOR WRIT OF MANDAMUS OR HABEAS CORPUS

Caitlin Plummer, OSB No. 200858
cplummer@lanepds.org
Public Defender Services of Lane County
180 E. 11th. Ave.
Eugene, OR 97401
(541) 484-2611 ext. 145

Attorney for Defendant-Relator

Dan Rayfield, OSB No. 064790
attorneygeneral@doj.state.or.us
Oregon Department of Justice
1162 State Street NE
Salem, OR 97301
(503) 378-6002

Attorney for Plaintiff-Adverse Party

PUBLIC DEFENDER SERVICES OF LANE COUNTY, INC.
180 E.11TH AVE, Eugene, Oregon 97401
Phone: (541)484-2611 Fax: (541)484-5068

Filed January 2025

EMERGENCY PETITION FOR WRIT OF MANDAMUS OR HABEAS CORPUS

Relator alleges:

1. Columbus Hayles is currently confined in a county jail cell without bail. His detention is plainly unlawful. The Oregon Constitution permits pretrial detention for only specified offenses—murder, treason, and violent felonies. Or Const, Art I, §§ 14, 43(1)(b). Oregon statutes do not, and cannot, alter this framework. Because the charges against relator do not fit within the categories specified by the Oregon Constitution, he has a right to bail. *Priest v. Pearce*, 314 Or 411, 418, 840 P2d 65, 68 (1992). The undisputed facts show that the detention order is unconstitutional.
2. The State alleges that, on October 31, 2024, relator drove a motor vehicle while his license was suspended. At arraignment, on December 2, 2024, the Circuit Court for Lane County released him pretrial under an order that he comply with several conditions and submit to the supervision of the Pretrial Services Office of Lane County.
3. The state alleges that, on or about December 19, 2024, relator again drove a motor vehicle while his license was suspended. At arraignment, on December 31, 2024, the circuit court revoked relator's release and remanded him without bail to the custody of the Lane County Sheriff.

PUBLIC DEFENDER SERVICES OF LANE COUNTY, INC.
180 E.11TH AVE, Eugene, Oregon 97401
Phone: (541)484-2611 Fax: (541)484-5068

4. The Circuit Court for Lane County did not consider or determine whether relator's release would pose a risk of flight or danger to the public. Instead, the court based the detention order on an erroneous reading of ORS 135.240(4)(f)(A).

5. Defense counsel objected that the detention order violated relator's right to bail under the Oregon Constitution. The court overruled the objection without a response from the State. Relator has been jailed since December 29, 2024.

6. This petition is timely made because relator remains in jail due to the unlawful order, which was entered less than 30 days ago. The state is not prejudiced by the court taking up review under the doctrine of laches. *State v. Peekema*, 328 Or 342, 346, 976 P2d 1128 (1999).

7. Relator has raised the unlawfulness of his detention and exhausted all possible remedies available to him in the Circuit Court. Because there is no mechanism to directly appeal bail determinations, relator cannot appeal to the Circuit Court or the Court of Appeals for relief.

8. The trial court imposed a no-bail detention order in contravention of the Oregon Constitution. Because there is no mechanism to appeal, and because issues regarding unlawful pretrial confinement necessarily dissipate at trial or upon conviction, there is no plain, speedy and adequate remedy at law for the constitutional violations caused by the detention order below. *Stack v. Boyle*, 342 US 1, 4 (1951) ("Relief in this type of case must be speedy if it is to be effective");

PUBLIC DEFENDER SERVICES OF LANE COUNTY, INC.
180 E.11TH AVE, Eugene, Oregon 97401
Phone: (541)484-2611 Fax: (541)484-5068

accord id. at 12 (Jackson, J., concurring) ("[U]nless it can be reviewed before sentence, it never can be reviewed at all.").

9. This Court has jurisdiction to hear this Petition pursuant to ORS 34.310 *et seq*. and Article VII (Amended), section 2, of the Oregon Constitution. An emergency writ of mandamus or, in the alternative, habeas corpus is the only relief available. *Rico-Villalobos v. Giusto*, 339 Or 197, 203, 118 P3d 246, 249 (2005).

REQUEST FOR RELIEF

WHEREFORE,

Relator Columbus Hayles respectfully requests that this Court enter an emergency writ of mandamus or, in the alternative, a writ of habeas corpus ordering the Circuit Court to immediately release relator on bail, as required by the Oregon constitution. Even after he is released, relator requests that this Court issue a precedential opinion that will serve to guide future release decisions.

Respectfully submitted this 24th day of January 2025,

/s/ *Caitlin Plummer*
Caitlin Plummer
Public Defender Services of Lane County
Counsel for Defendant-Relator

PUBLIC DEFENDER SERVICES OF LANE COUNTY, INC.
180 E.11TH AVE, Eugene, Oregon 97401
Phone: (541)484-2611 Fax: (541)484-5068

CERTIFICATE OF SERVICE

I hereby certify that I served the foregoing *Petition For Writ of Mandamus or Habeas Corpus; Memorandum Supporting Petition*; and *Excerpts of Record* on the following persons on this date by US mail, first-class, postage paid:

The Honorable Debra K. Vogt
Lane County Courthouse
Lane County Circuit Court
125 E 8th Ave
Eugene, OR 97401

Attorney General of the State of Oregon
Office of the Solicitor General
400 Justice Building
1162 Court Street NE
Salem, OR 97301-4096

Ryan W. Leal
Deputy District Attorney
Lane County District Attorney's Office
125 E 8th Ave #400
Eugene, OR 97402

I further certify that I filed it on the Administrator by eFiling.

January 24, 2025.

/s/ *Caitlin Plummer*
Caitlin Plummer
Public Defender Services of Lane County
Counsel for Defendant-Relator

PUBLIC DEFENDER SERVICES OF LANE COUNTY, INC.
180 E.11TH AVE, Eugene, Oregon 97401
Phone: (541)484-2611 Fax: (541)484-5068